

3.	METOYER VS. EXCEL ACADEMY CHARTER SCHOOLS 2024-01430946	MOTION TO COMPEL DEPOSITION (ORAL OR WRITTEN) The Motion to Compel Plaintiff’s Deposition Testimony by Defendant Excel Academy Charter Schools is GRANTED. Defendant moves to compel Plaintiff to respond to a deposition question in which she was asked to identify her current employer. (Defendant argues, “Dr. Metoyer attempted to prevent disclosure of this information by agreeing not to pursue lost wages as damages, but then placed that information back in controversy by tying her alleged emotional distress to disclosing her employment history when applying for jobs. Thus, the lion’s share of her alleged emotional distress damages are directly tied to her current employer.” (Motion, 4:5-9.) Plaintiff opposes the motion on the grounds that (1) the parties entered a stipulation on the record that Plaintiff would not seek economic damages in exchange for Defendant not questioning her about subsequent employment, (2) the identify of Plaintiff’s current employer is not relevant, and (3) Plaintiff’s right to privacy protects this information. In reply, Defendant argues that while the parties agreed not to examine Plaintiff’s current employment related to economic damages, Plaintiff later raised the issue of emotional distress involving her current employment in relation to her claims against Defendant, her prior employer. Defendant also asserts that it should be able to determine whether Plaintiff’s claim that she did not lie about her past termination when seeking new employment is credible. At her deposition, Plaintiff testified she was still experiencing emotional distress, including when “something comes up about my work history or questions” such as “[i]n seeking employment” with her current employer. (Plaintiff Depo., 192:3-198:4.) The Defendant need only show that the information sought is reasonably calculated to lead to discovery of admissible evidence. (Code Civ. Proc. § 2017.010.) And while Plaintiff has privacy rights related to her employment information, she has placed issues related to her current employment at issue by stating that she has suffered emotional distress in relation to applying for new positions after Defendant’s termination. (Plaintiff Depo., 191:18-198:7; see <i>John B. v. Superior Court</i> (2006) 38 Cal.4th 1177, 1199 [“privacy interests may have to give way to (the) opponent’s right to a fair trial”]; <i>Vinson v. Superior Court</i> (1987) 43 Cal.3d 833, 842 [“a party who chooses to allege that he has mental and emotional difficulties can hardly deny his mental state is in controversy”].) At this time, the Court need not decide whether further discovery into Plaintiff’s current employment will be permitted. The parties
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		are encouraged to work cooperatively to resolve any anticipated issues regarding future discovery into this issue. Defendant’s request for sanctions is denied because both sides acted with substantial justification based on Plaintiff’s assertion of constitutional privacy rights. (Code Civ. Proc. § 2025.480(j).)
4.	TOOLEY VS. RIVIAN LLC 2025-01519651	MOTION TO COMPEL ARBITRATION Defendant Rivian LLC’s unopposed motion to compel arbitration and to stay the action is GRANTED. Defendant contends Plaintiff’s claims are subject to arbitration pursuant to a “Rivian Motor Vehicle Agreement.” Plaintiffs have not filed an opposition. Legal standard The Federal Arbitration Act (FAA) authorizes enforcement of arbitration causes unless grounds exist in law or equity for the revocation of any contract. (9 U.S.C. § 2.) Similarly, under the California Arbitration Act (CAA), a party to an arbitration may move to compel arbitration if the other contractual party refuses to arbitrate. (Code Civ. Proc., § 1281.2.) “[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable.” (<i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 413 (<i>Rosenthal</i>)). “[T]he petitioner bears the burden of proving its existence by a preponderance of the evidence” and the party opposing the petition bears the burden of proving by a preponderance of the evidence of any fact necessary to any defenses raised. (<i>Ibid.</i>) Defendant seeks to compel arbitration under the FAA. <u>Analysis</u> <u>The Subject Arbitration Agreement</u> On 4/26/24, Plaintiffs leased a new 2024 Rivian Model R1S (the Subject Vehicle) from Defendant. (Orquiola Decl., ¶ 3, Ex. A.) To lease the Subject Vehicle, Plaintiffs executed a “Rivian Motor Vehicle Agreement” (RMVA). (Orquiola Decl., ¶ 4, Ex. B) The RMVA states on page 1, in part, “THIS AGREEMENT REQUIRES THE USE OF ARBITRATION ON AN INDIVIDUAL BASIS TO RESOLVE DISPUTES, RATHER THAN JURY TRIALS OR CLASS ACTIONS. PLEASE